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Popular Feeling in Kashmir is Valid Ground to Grant Afzal Pardon

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‘Constitutional law is not at all a science, but applied politics, using the word in its noble sense.’ It was in the spirit of Justice Felix Frankfurthen’s aphorism that, on 8 September 1974, US President Gerald Ford granted pardon to his predecessor, Richard Nixon.[1] He acted against public opinion and in the knowledge that it would cost him the election in 1976, which it did. History has, however, vindicated him.

A nation torn apart by race riots, protests on Vietnam and partisanship could ill-afford the trauma. The US’s prestige in the world would have sunk low. The Special Watergate Prosecutor, Leon Jaworski, was flooded with appeals to challenge the pardon. His memoirs, *The Right and the Power,* record agonizingly why he refused to do so.[2]

Never before has Kashmir witnessed such intense unanimity—from Chief Minister Ghulam Nabi Azad to the separatists—as on pardon for Mohammad Afzal. What we need to ask ourselves is why do Kashmiris react as they do? The answer we shirk is that they feel oppressed and humiliated. Afzal is no popular hero, unlike Maqbool Butt. But it is their own tragic condition they lament each time. They protest thus. We must address earnestly the roots of Kashmiri alienation, not dismiss the popular clamour as some do.

‘It looks to me to be narrow and pedantic, to apply the ordinary ideas of criminal justice to this great public contest. I do not know the method of drawing up an indictment against a whole people. I cannot insult and ridicule the feelings of millions of my countrymen.’[3] What Edmund Burke said in his immortal speech in Britain’s House of Commons on 22 March 1775, on conciliation with the US, is true of Kashmiris as well.

Has anyone ever heard of a death sentence on a man who was undefended at his trial? This monstrous miscarriage of justice warrants retrial. The